

		determination of actions on their merits.” Any doubts “must be resolved in favor of the party seeking relief from default.” (<i>Shapell Socal Rental Properties, LLC v. Chico's FAS, Inc.</i> (2022) 85 Cal.App.5th 198, 212.) A motion for discretionary relief under section 473(b) must satisfy three requirements. First, the motion must be made “within a reasonable time” and “in no case exceeding six months” after the entry of default (unless relief is sought on equitable grounds). (Code of Civ. Proc. § 473, subd. (b).) Second, the motion “shall be accompanied” by a copy of the answer or other proposed pleading to be filed, “otherwise the application shall not be granted.” (Code of Civ. Proc. § 473, subd. (b).) Lastly, the motion must show that default was taken as a result of mistake, inadvertence, surprise, or excusable neglect. The Court finds all three requirements have been satisfied, here. First, the motion was timely made within approximately five months of the entry of default. (See ROA 20, 55.) Any delay was not so unreasonable as to warrant the denial of relief. Second, the motion is accompanied by a copy of the proposed answer. (See ROA 55, Exh. A.) Lastly, the motion is supported by declarations from each of the defendants, explaining the difficult health and other personal circumstances during the time they were purportedly served with process and when their default was entered. (See ROA 28.) Plaintiff’s arguments as to why relief should be denied are not persuasive in light of the liberal policy favoring relief, and in light of the circumstances presented in the moving papers. The Court, hereby, orders the Default entered against Defendants (ROA 20) to be vacated and set aside. Defendants shall file and serve their proposed answer by 9/25/26, and give notice of the ruling. Default Prove-Up Hearing Off calendar Clerk to give notice.
11	Val-Chris Investments, Inc. vs. Osoka 2025-01536941	Motion for Change of Venue (Transfer) The motion by Defendant Camelita Osoka (“Osoka”) for an order transferring this action is GRANTED. The unopposed request by Plaintiff Val-Chris Investments, Inc. (“Plaintiff”) for the Court to take judicial notice of the docket in this

action is granted. ((Evid. Code, § 452, subd. (d); *Truong v. Nguyen* (2007) 156 Cal.App.4th 865, 872, fn. 3.) Plaintiff's unopposed request for the Court to take judicial notice of Osoka's counsel's State Bar profile is granted. (*Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 193; *see, Searles Valley Minerals Operations, Inc. v. State Board of Equalization* (2008) 160 Cal.App.4th 514, 519.) Plaintiff's unopposed request to take judicial notice of the promissory note is granted. (*Salvaty v. Falcon Cable Television* (1985) 165 Cal.App.3d 798, 800, fn. 1.) Plaintiff's unopposed requests to take judicial notice of CCP sections 395, subdivision (a) and 396, subdivision (d) is granted. (Evid. Code, § 452, subd. (a).].)

Plaintiff's objections to Aberegg's declaration are overruled.

If an action was not commenced in the proper court, a party may move to transfer the action upon noticed motion before the time for the party to answer, demur or move to strike has expired. (Code Civ. Proc. § 396b, subd. (a).) The general rule is that "a defendant is entitled to have an action tried in the county of his or her residence unless the action falls within some exception to the general venue rule." (*Brown v. Superior Court* (1984) 37 Cal.3d 477, 483; Code Civ. Proc., § 395.)

"If the action is for injury to person or personal property or for death from wrongful act or negligence, the superior court in either the county where the injury occurs or the injury causing death occurs or the county where the defendants, or some of them reside at the commencement of the action, is a proper court for the trial of the action." (Code Civ. Proc., § 395, subd. (a).) "If none of the defendants reside in the state or if they reside in the state and the county where they reside is unknown to the plaintiff, the action may be tried in the superior court in any county that the plaintiff may designate in his or her complaint." (*Id.*)

The "moving party must overcome the presumption that the plaintiff has selected the proper venue." (*Fontaine v. Superior Court* (2009) 175 Cal.App.4th 830, 836.) The burden is on the moving party "to demonstrate that the plaintiff's venue selection is not proper under any of the statutory grounds." (*Id.*)

If it appears that the action or proceeding was not commenced in the proper court, the Court shall order the action or proceeding transferred to the proper court. (Code Civ. Proc., § 396b, subd. (a).)

The Court may change the place of trial when the convenience of witnesses and the ends of justice would be promoted by the change.

(Code Civ. Proc. § 397, subd. (c).) However, the Court “will not entertain a motion for change of venue on the ground of convenience of witnesses when the defendant has not filed an answer, for the reason that until the issues are joined the court cannot determine what testimony will be material” and “a motion for change of venue cannot be defeated on the ground of convenience of witnesses until an answer is filed.” (*Cholakian & Associates v. Superior Court* (2015) 236 Cal.App.4th 361, 368.)

“[T]he right of *each* defendant to defend in its own county cannot be forfeited by the actions of *other* defendants, the answers of *other* defendants cannot take the place of each defendant’s *own* answer, necessary to permit consideration of opposition to that same defendant’s motion to transfer venue. (*Cholakian & Associates v. Superior Court*, 236 Cal.App.4th at 371.) Accordingly, all proper defendants must file an answer “before an opposition to a motion to transfer to a correct court will be considered on the basis of convenience of witnesses or the ends of justice.” (*Id.*, at 372.)

“In its discretion, the court may order the payment to the prevailing party of reasonable expenses and attorney’s fees incurred in making or resisting the motion to transfer whether or not that party is otherwise entitled to recover his or her costs of action. In determining whether that order for expenses and fees shall be made, the court shall take into consideration (1) whether an offer to stipulate to change of venue was reasonably made and rejected, and (2) whether the motion or selection of venue was made in good faith given the facts and law the party making the motion or selecting the venue knew or should have known. As between the party and his or her attorney, those expenses and fees shall be the personal liability of the attorney not chargeable to the party. Sanctions shall not be imposed pursuant to this subdivision except on notice contained in a party’s papers, or on the court’s own noticed motion, and after opportunity to be heard.” (Code Civ. Proc., § 396b, subd. (b).)

“The statute requires the court to assess whether the attorney acted in good faith after having first skillfully evaluated the facts and reviewed applicable statutes and case law. The phrase ‘good faith’ is ordinarily used to describe that state of mind denoting honesty of purpose, freedom from intention to defraud, and, generally speaking, means being faithful to one’s duty or obligation. (*People v. Nunn* (1956) 46 Cal.2d 460, 468 (296 P.2d 813).) Thus, if, after reviewing the factual and legal presentation made by the losing party, the court finds that no reasonable attorney would have honestly chosen such a forum, and that the forum appears to have been selected to impair defendant’s

right to defend, an award of attorney fees would be entirely proper.” (*Metzger v. Silverman* (1976) 62 Cal.App.3d Supp. 30, 38-39.)

“The statute also requires the attorney filing an action, or one opposing a motion for a change of venue, to carefully investigate the facts with a view of determining which court is proper for the trial of the action. If, following a thorough investigation, the attorney has an honest and reasonable belief that his client has a tenable contention, and he believes that he can establish the existence of such facts supporting his choice of venue to the satisfaction of the court, this part of his task is complete.” (*Id.*, at 39.)

“Finally, a lawyer is expected to possess knowledge of those plain and elementary principles of law which are commonly known by well informed attorneys, and to discover those additional rules of law which, although not commonly known, may be readily found by standard research techniques. If the law on a particular subject is doubtful or debatable, an attorney will not be held responsible for failing to anticipate the manner in which the uncertainty will be resolved. But even with respect to an unsettled area of the law, an attorney assumes an obligation to his client to undertake reasonable research in an effort to ascertain relevant legal principles and to make an informed decision as to a course of conduct based on an intelligent assessment of the problem.” (*Id.*)

When “transfer is sought solely, or is ordered, because the action or proceeding was commenced in a court other than that designated as proper by this title,” the costs and fees of the transfer and of filing the papers in the court to which the transfer is ordered shall be paid by the plaintiff before the transfer is made. (Code Civ. Proc., § 399, subd. (a).)

Osoka met her burden to show this action was not commenced in the proper court. When the gravamen of the cause of action is fraud, the “action in fraud is transitory and is triable in the county of defendant’s residence.” (*Quick v. Corsaro* (1960) 180 Cal.App.2d 831, 834-835.) There is no dispute that Osoka does not reside in Orange County and that Osoka resides in Santa Clara County. (Aberegg Decl., ¶ 2.)

Plaintiff did not show Orange County is a proper venue. Although the loan agreement was purportedly entered into and to be performed in Orange County, Plaintiff’s complaint is not based on contract. Nor is Plaintiff attempting to rescind the agreements. (*See*, Complaint, Prayer, 11:1-15.) Plaintiff’s complaint alleges causes of action for fraudulent concealment, fraud in the inducement, and tort of another against Osoka.

		Although Avington filed an answer to the complaint, Osoka had not yet filed an answer. Accordingly, the Court need not consider Plaintiff's opposition on the ground of witness convenience. (<i>Cholakian & Associates v. Superior Court</i>, 236 Cal.App.4th at 368 and 372.) Within 10 days, Osoka shall submit a proposed order for the Court's signature. The order must contain at least the following: (1) the Court orders this matter be transferred to the Superior Court of California for the County of Santa Clara County, upon payment of all the necessary fees required by law; (2) Plaintiff is to pay transfer fees and costs no later than 60 days from service of the notice of the transfer order; (3) the basis of the transfer is because venue is proper in Santa Clara; (4) the clerk of this court is authorized to transfer all the pleadings and papers herein to the clerk of the receiving court; (5) the court, division, and address where the case is being transferred; and (6) if those costs and fees are not paid within 60 days after service of notice of the transfer order, the court on a duly noticed motion by any party may dismiss the action without prejudice to the cause on the condition that no other action on the cause may be commenced in another court prior to satisfaction of the court's order for costs and fees. (Code Civ. Proc., § 399, subd. (a).) The court hereby sets a hearing on an order to show cause re: dismissal for January 11, 2027 at 9:00 am in Department C11. The Case Management Conference is vacated. The court will hear argument on sanctions specifically, as to whether Plaintiff's counsel acted in good faith (the Court's tentative finding is that Plaintiff's counsel did act in good faith) and whether an offer by Osaka to stipulate to jurisdiction in Alameda County was a reasonable offer to stipulate under Code Civ. Proc., § 396b, subd. (b) (the Court's tentative finding is that is was reasonable). Case Management Conference Off calendar
12	Williams vs. West Coast Casters & Wheels, Inc.	Motion for Leave to Amend Before the Court is Defendants West Coast Casters & Wheels Inc., Kevin P. Manok, and Denise Renee Brady's Motion for leave to file a first amended answer to Plaintiff Florina Williams' Complaint.